

A Janga Reddy vs Mrs. A.Sudha Rani , Padma on 24 June, 2026

Author: K.Lakshman

Bench: K. Lakshman

IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD

THE HON'BLE SRI JUSTICE K. LAKSHMAN
AND
THE HON'BLE SRI JUSTICE B.R.MADHUSUDHAN RAO

Family Court Appeal No.317 of 2017
Date: 24.06.2026

Between:

XXXXXXX

...Appellant

And

XXXXXXX

...Respondent

JUDGMENT:

(Per Hon'ble Sri Justice K.Lakshman) Heard Smt.P.Bhavana Rao, learned counsel for the appellant and Ms.Soumya, learned counsel representing Sri Venkateswarlu Saniseti, learned counsel for the respondent.

2. This appeal is filed under Section 19 of the Family Courts Act, 1984 challenging the order dated 13.04.2017 in FCOP No.1336 of 2012 passed by the learned Judge, Family Court, City Civil Court, Hyderabad.

3. The respondent/wife filed a petition under Section 9 of the Hindu Marriage Act against the appellant/husband seeking restitution of conjugal rights. Their marriage was solemnized on 24.01.1988 in accordance with Hindu customs and rites. It was an arranged marriage. Out of their lawful wedlock, they were blessed with two children. Thereafter, matrimonial disputes arose between the parties.

4. The appellant/husband filed a petition under Sections 13(1)(ia) and 13(1)(ib) of the Hindu Marriage Act, seeking dissolution of marriage on the grounds of cruelty and desertion in O.P. No. 343 of 2008. The said petition was dismissed on 13.01.2011. The appellant did not prefer any appeal against the said order; therefore, the order has attained finality.

5. The parties also decided to obtain a decree of divorce by mutual consent and accordingly prepared a petition under Section 13-B of the Hindu Marriage Act. However, they did not present the said petition before the competent Family Court having jurisdiction. The said petition was marked as Ex.R1.

6. Respondent/wife filed FCOP No.1336 of 2012 under Section 9 of the Hindu Marriage Act seeking restitution of conjugal rights contending that she is ready and willing to lead marital life with the appellant/husband. She has also referred with regard to filing an application under Section 12 of the Domestic Violence Act vide DVC No.04 of 2011 and an application under Section 125 of Cr.P.C vide M.C.No.363 of 2011 and the learned trial Court awarded an amount with regard to maintenance, rent etc.

7. Appellant/husband filed counter opposing the said application contending that the respondent/wife implicated him in false cases including a criminal case filed for the offence under Section 498-A of IPC. He is not interested to lead marital life with the respondent/wife.

8. In support of her claim, respondent/wife, examined herself as P.W.1 and an independent witness as P.W.2. She has filed Ex.P1, a copy of the order in O.P.No.343 of 2008 on the file of Family Court, Ranga Reddy District.

9. To disprove the said claim, appellant/husband examined himself as R.W.1 and his maternal brother-in-law as R.W.2. He has filed Exs.R1 to R3.

10. Learned Family Court marked Ex.X1 photograph.

11. On consideration of the said evidence, both oral and documentary, learned Family Court allowed the said application and directed the appellant/husband to join the marital society of the respondent/wife within three months from the said date to lead happy and peaceful marital life. Challenging the said order, appellant/husband preferred the present appeal.

12. It is apt to note that this Court vide order dated 04.01.2018, stayed the operation of the said order.

13. We have heard learned counsel for the appellant and learned counsel for the respondent, extensively.

14. We have perused the record.

15. It is the specific contention of the learned counsel for the appellant that the respondent/wife falsely implicated the appellant/husband in C.C. No. 1795 of 2007 for the offence punishable under Section 498-A of the IPC. The learned trial Court convicted the appellant/husband and sentenced him to undergo imprisonment for a period of one year. Aggrieved by the said conviction and sentence, the appellant/husband preferred Criminal Appeal No. 165 of 2010, which was allowed. Challenging the judgment rendered in the said appeal, the respondent/wife filed Criminal Revision Case No. 423 of 2012. The said Criminal Revision Case was dismissed on 27.09.2023.

16. Referring to the same, learned counsel for the appellant would contend that on one hand, respondent/wife is seeking restitution of conjugal rights and on the other hand, pursuing the aforesaid proceedings. Without considering the said aspects, learned Family Court allowed the

aforesaid FCOP filed by the respondent/wife seeking restitution of conjugal rights.

17. On the other hand, learned counsel for the respondent/wife would contend that learned Magistrate has allowed DVC No.4 of 2011 in part, and an amount of Rs.2,000/- was awarded to the respondent towards rent and Rs.6,000/- towards maintenance of respondent and her two children. An application filed by the respondent under Section 125 of Cr.P.C vide M.C.No.363 of 2011 was allowed by the learned Magistrate awarding an amount of Rs.10,000/- to the respondent and her two children towards maintenance. However, the appellant/husband is not paying the said amount. Therefore, respondent was compelled to file the aforesaid Criminal Revision Case No.423 of 2012.

18. During the course of hearing, it is brought to the notice of this Court that the children born to the appellant and the respondent, namely, their son and daughter, have attained majority, are presently residing in the USA, and have settled there. It is also brought to the notice of this Court that the respondent is residing with her children in the USA.

19. The learned counsel for the appellant specifically contended that the appellant has been regularly paying the amounts awarded by the learned Magistrate in D.V.C. No. 4 of 2011 and M.C. No. 363 of 2011. Although the learned counsel appearing for the respondent disputed the said contention, no proceedings have been initiated by the respondent for execution or enforcement of the orders passed in the aforesaid cases on the ground of non-payment. The said circumstance indicates that the respondent is residing in the USA and has not taken any further steps against the appellant for enforcement of the said orders. However, it is for the respondent to take steps in accordance with law for non-payment of the said amount if so advised.

20. As discussed supra, an application filed by the appellant/husband vide OP No.343 of 2008 against respondent/wife seeking dissolution of marriage on the ground of cruelty was dismissed by learned Family Court on 13.01.2011. He did not prefer any appeal challenging the said order, as such, it had attained finality.

21. On consideration of the said facts only, learned Family Court allowed the aforesaid OP filed by the respondent/wife, which is reasoned order and well founded. Appellant/husband herein failed to make out any case warranting interference with the said order.

22. A perusal of the record would reveal that the respondent was aged 45 years and the appellant was aged 50 years at the time of filing F.C.O.P. No. 1336 of 2012. As on date, they are aged about 59 years and 64 years, respectively.

23. In the light of the aforesaid discussion, this appeal is liable to be dismissed and, accordingly, dismissed. Miscellaneous applications, if any, shall stand closed. There shall be no order as to costs.

_____ K. LAKSHMAN, J _____
B.R.MADHUSUDHAN RAO, J 24th June, 2026.

KVS